

Multiple Choice (10 marks)

1. Hart argues that secondary rules are 'power-conferring' but this seems unconvincing in the case of the rule of recognition because:
 - (a) It is not a social rule.
 - (b) It both confers power and imposes duties on judges to decide cases.
 - (c) It is a primary rule, not a secondary rule.
 - (d) It is applicable only in the case of federal constitutions.
 - (e) It fails to specify the source of authority.
2. Leopold Pospisil identifies four elements manifested by law: authority, universality, 'obligatio' - and fourthly?
 - (a) Integrity.
 - (b) Hierarchy.
 - (c) Dispute.
 - (d) Justice.
 - (e) Harmony.
3. What is passive personality jurisdiction?
 - (a) It is jurisdiction based on the country where the legal person was Registered
 - (b) It is jurisdiction based on the nationality of the offender
 - (c) It is jurisdiction based on the relationship between the victim and the offender
 - (d) It is jurisdiction based on the nationality of the victims
 - (e) It is jurisdiction based on the severity of the offence
4. Which of these statements best describes the UK Constitution?
 - (a) The UK Constitution is a direct copy of the US Constitution
 - (b) The UK Constitution is codified and contained in a single document
 - (c) The UK Constitution can be changed by a simple majority vote in Parliament
 - (d) The UK Constitution gives the judiciary the power to overturn acts of parliament
 - (e) The UK Constitution is based on a Bill of Rights
5. Which statement below best represents Durkheim's view of the function of punishment?
 - (a) Vengeance.
 - (b) Deterrence.

- (c) Restoration.
- (d) Moral education.
- (e) Indemnification.

True / False (10 marks)

Answer True or False

- 6. True or False: According to Savigny, law is not simply the deliberate expression of a sovereign's will, but reflects the spirit of the people.
- 7. True or False: Savigny asserted that 'Jurisprudence is the eye of law,' highlighting its role in understanding legal principles.
- 8. True or False: An 'armed attack' under the UN Charter allows for preemptive invasion of a state based solely on perceived threats.
- 9. True or False: Roscoe Pound asserted that 'Jurisprudence is the eye of law,' emphasizing its role in interpreting legal principles.
- 10. True or False: Weber's explanation of the development of formally rational law is best summarized by the concept of socialism.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

- 11. Discuss the constitutional implications of a criminal statute that prohibits the dissemination of information on obtaining an abortion, focusing on First Amendment protections for commercial speech.
- 12. Discuss the legal requirements for a statement to be classified as slander, and analyze the implications of intent in determining liability in such cases.

End of Paper